

102	Kaufman vs. Membreano, 25-01489200	Defendant, Mariela Membreano (“Defendant”), moves for an order reclassifying this action from Orange County Superior Court Unlimited Civil to Orange County Superior Court Limited Civil Jurisdiction, and that Plaintiff, Leslie Keith Kaufman (“Plaintiff”), and his attorney pay any and all reclassification fees. As a threshold matter, Plaintiff filed his opposition four days late on September 10, 2025. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) Given that Defendant has addressed the substance of the opposition in the reply, the Court considers the late-filed opposition. Defendant contends that transfer of this case to Limited Jurisdiction will promote the ends of justice in that this action will involve the determination of questions not within the scope of unlimited jurisdiction. Plaintiff contends the motion should be denied as it was brought too late, just 32 days before trial, and that Defendant fails to satisfy the conditions set forth in Code of Civil Procedure section 403.040(b), by failing to showing good cause for not seeking reclassification earlier, and failing to meet the high burden of reclassifying a case from unlimited to limited jurisdiction. This motion is made pursuant to the Code of Civil Procedure, Sections 396 and 397, as well as 403.040 et seq. Pursuant to Code of Civil Procedure section 403.040(a), a defendant may file a motion to reclassify an action within the time allowed to file a responsive pleading. The statute states, in pertinent part, as follows: “(b) If a party files a motion for reclassification after the time for that party to amend that party's initial pleading or to respond to a complaint, cross-complaint, or other initial pleading, the court shall grant the motion and enter an order for reclassification only if both of the following conditions are satisfied: “(1) The case is incorrectly classified. “(2) The moving party shows good cause for not seeking reclassification earlier.”
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		(Code Civ. Proc. § 403.040(b).) Here, Defendant filed her Answer to the Complaint on August 14, 2025. (ROA 9.) Plaintiff's initial ex parte application for reclassification was filed on August 19, 2026, and the instant motion for reclassification was filed on August 21, 2026. As such, Defendant filed the instant motion for reclassification over a year after the Defendant's Answer was filed. While Defendant argues that the case is incorrectly classified, Defendant does not show good cause for not seeking reclassification earlier, and sets forth no evidence showing when Plaintiff's discovery responses upon which Defendant relies, were served. In reply, Defendant submits an additional declaration from counsel which generally provides that it was determined that the case was one of limited jurisdiction "[t]hrough written discovery and deposition," that the written discovery was needed to evaluate the damages and the deposition was needed to confirm the damages and reevaluate said damages, and that no other supporting documentation has been submitted to support any further damages. (Reply Declaration of Christopher Lyon, ¶¶ 3-4.) Nonetheless, Defendant still fails to provide any explanation for why Defendant did not seek reclassification earlier. As such, Defendant fails to show good cause for not seeking reclassification earlier as required by Code of Civil Procedure section 403.040(b)(2). The motion is therefore DENIED. <i>Plaintiff to give notice.</i>
104	HNHPC, Inc. vs. California Department of Tax and Fee Administration, 23-01369643	Petitioner HNHPC, Inc. ("Petitioner") moves for reconsideration and denial of the Court's October 31, 2025 order granting respondents California Office of Administrative Law and California Department of Tax and Fee Administration's ("Respondents") Motions to Quash. Alternatively, Petitioner seeks clarification as to what the parties can and cannot do or submit under the October 2025 order. Code of Civil Procedure section 1008(a) provides, in relevant part: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any